

SORTA BOARD OF TRUSTEES MEETING

TUESDAY, JANUARY 18TH, 2022 – 9:00 A.M
SORTA/METRO- HUNTINGTON CENTER
23RD FLOOR CONFERENCE, 525 VINE STREET
CINCINNATI, OHIO 45202

General Items:

Call to order
Pledge of Allegiance
Hearings from citizens
Oath of Office: Sara Sheets (*Kim Schafer, Legal Counsel*)
Chairman Update

Action Items:

1. Approval of Board Minutes: December 14th, 2021 and January 7th, 2022 (*Special Board Meeting*)

Finance Committee (*Heidi Black*)

Consent Action Item(s):

2. Proposed Motion: Approval of 2022 Annual Board Meeting Schedule
3. Proposed Resolution 2022-02: Approval of Third Party Administrator (TPA) Contract for Workers' Compensation

Planning & Operations Committee (*Blake Ethridge*)

Consent Action Item(s):

4. Proposed Motion: Approval of Agency Safety Plan
5. Proposed Resolution 2022-03: Approval of Contract for Operator Uniforms
6. Proposed Resolution 2022-04: Approval of a Memorandum of Understanding (MOU) with the Village of Silverton
7. Proposed Resolution 2022-05: Approval to Purchase Electric Vehicles for Access
8. Proposed Resolution 2022-06: Approval of Contract for Alternator Test Bench

Discussion Action Items:

9. Proposed Resolution 2022-07: Approval of the Collective Bargaining Agreement (CBA)

Briefing Items:

10. Financial Reports for December 2021 (*Cindy Resor*)
11. Year In Review
12. Metro on the Move (*Darryl Haley*)

Governance and Nominating Committee (*Brendon Cull*)

13. Election of Officers- 2022 Chair and Vice Chair of the SORTA Board of Trustees

Other Items:

Adjournment

The next regular meeting of the SORTA Board of Trustees is scheduled for
Tuesday, February 15th, 2022 at 6:00 P.M.

The SORTA Board of Trustees may go into Executive "Closed" Session under the Ohio Open Meetings Act:

Section 121.22(G)(1) To consider appointment, employment, dismissal, discipline, promotion, demotion, or compensation of a public employee...; Section 121.22(G)(2) To consider the purchase of property for public purposes...; Section 121.22(G)(3) Conferences with an attorney for the public body concerning disputes involving the public body that are the subject of pending or imminent court action; Section 121.22(G)(4) Preparing for, conducting, or reviewing negotiations or bargaining sessions with public employees...; Section 121.22(G)(5) Matters required to be kept confidential by federal law or regulations or state statutes; Section 121.22(G)(6) Details relative to the security arrangements and emergency response protocols for a public body or a public office; Section 121.22(G)(8) To consider confidential information related to the marketing plans, specific business strategy, production techniques, trade secrets...

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY

MINUTES OF: Regular Meeting of the SORTA Board of Trustees

DATE: Tuesday, December 14th, 2021 9:00 A.M.

BOARD MEMBERS PRESENT: Alyson Beridon, Heidi Black, Chelsea Clark, Brendon Cull, Blake Ethridge, Kreg Keesee, Robert Harris, Roderick Hinton, Gwen Robinson, Sonja Taylor,

BOARD MEMBERS ABSENT: Maurice Brown, Allen Freeman, Thaddeus Hoffmeister, Larry Thompson, and Kathleen Wyenandt

STAFF MEMBERS: Darryl Haley, Donna Adkins, Steve Anderson, Chris Cole, Pat Giblin, Adriene Hairston, Jennifer Jackson, Brandy Jones, Caprice Jones, Natalie Krusling, Jeff Mundstock, John Ravasio, Cindy Resor, Mark Samaan, Shannel Satterfield, and Khaled Shammout

OTHERS: Kim Schafer (Vorys, Sater, Seymour and Pease, LLC)

CALL TO ORDER

Mr. Keesee SORTA Board Vice Chair, called the meeting to order.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was recited.

PUBLIC COMMENTS

There were no public comments.

CEO STAR AWARD: DAVE WARNING

Mr. Haley presented the CEO STAR Award to Mr. David (Dave) Warning for

APPROVAL OF NOVEMBER 16TH, 2021 BOARD MEETING MINUTES

Ms. Robinson made a motion that the minutes of the November 16th, 2021 board meeting be approved as previously mailed and Mr. Hoffmeister seconded the motion.

By voice vote, the SORTA Board approved the minutes.

FINANCE COMMITTEE

Ms. Black reported the Finance Committee meeting that was held on December 7th, 2021 and there were item(s) to present for Board approval.

Ms. Black moved for adoption and Mr. Hoffmeister seconded the motion to approve action items 2 through 7 on the agenda. By roll call, the SORTA Board approved the Proposed Motion through Resolution No. 2021-42.

PROPOSED MOTION: APPROVAL OF CONTRACT FOR AUDITED FINANCIAL STATEMENTS

This motion approves an agreement between Crowe, the Ohio State Auditor's Office, and SORTA for the audit of SORTA's financial statements for the years ending 2021 through 2025, at a total cost not to exceed \$842,280.

PROPOSED RESOLUTION 2021-38: APPROVAL OF 2022 PROPERTY INSURANCE POLICY

This resolution approves a one (1) year policy with the Continental Casualty Company (CNA) at a cost not to exceed \$178,250 for property insurance.

PROPOSED RESOLUTION 2021-39: APPROVAL OF GENERAL LIABILITY INSURANCE PROGRAM RENEWAL

This resolution approves a one (1) year contract with the Ohio Transit Risk Pool (OTRP) at a cost not to exceed \$682,111 for its liability insurance program covering: General Liability, Automobile Liability, Public Officials Liability, Cyber Liability and Crime.

PROPOSED RESOLUTION 2021-40: APPROVAL OF SERVICE CONTRACT WITH BUTLER COUNTY

This resolution approves a one (1) year contract with two (2) automatic one (1) year renewals with Butler County Regional Transit Authority ("BCRTA") for a continuation of services.

PROPOSED RESOLUTION 2021-41: APPROVAL OF SERVICE CONTRACT WITH CLERMONT COUNTY

This resolution approves a one (1) year contract with two (2) automatic one (1) year renewals with Clermont County for a continuation of services.

PROPOSED RESOLUTION 2021-42: APPROVAL OF SERVICE CONTRACT WITH WARREN COUNTY

This resolution approves a one (1) year contract with two (2) automatic one (1) year renewals with Warren County for a continuation of services.

PLANNING AND OPERATIONS COMMITTEE

Mr. Ethridge reported the Planning and Operations Committee meeting that was held on December 7th, 2021 and there were item(s) to present for Board approval.

Mr. Ethridge moved for adoption and Mr. Hoffmester seconded the motion to approve action items 8 through 10 on the agenda. By roll call, the SORTA Board approved Resolution No. 2021-43 through Resolution No. 2021-45.

PROPOSED RESOLUTION 2021-43: APPROVAL OF CONTRACT FOR NATURAL GAS

This resolution approves a two (2) year contract with Interstate Gas Services (IGS) for SORTA's natural gas supply, including related delivery cost fees, at a total cost not to exceed \$700,000.

PROPOSED RESOLUTION 2021-44: APPROVAL FOR CONTRACT FOR MADISON AVENUE BRIDGE REPAIRS

This resolution approves a contract with Eagle Bridge Company for rehabilitation and repairs, at a total cost not to exceed \$692,107.90 including a 10% contingency, as the lowest responsive bid from a responsible bidder.

PROPOSED RESOLUTION 2021-45: APPROVAL OF CONTRACT FOR MONTGOMERY ROAD BRIDGE REPAIRS

This resolution approves a contract with Sunesis Construction for rehabilitation and repairs, at a total cost not to exceed \$1,014,498.10 including a 10% contingency, as the lowest responsive bid from a responsible bidder.

INFRASTRUCTURE, BIKE AND ROW COMMITTEE

Mr. Culll reported the Employee Relations Committee meeting that was held on December 10th, 2021 and there were action items to present for Board approval.

PROPOSED MOTION: AUTHORIZATION TO EXECUTE AWARDED TRANSIT INFRASTRUCTURE FUND AGREEMENTS

Mr. Cull moved for adoption and Ms. Robinson seconded the motion This motion authorizes the CEO/General Manager/Secretary-Treasurer to sign thirty (30) agreements from twenty-two (22) different municipalities within Hamilton County, total agreements not to exceed \$32,934,100.

By voice vote, the SORTA Board approved the motion.

PROPOSED MOTION: APPROVAL OF THE TRAIL DEVELOPMENT COORDINATION AGREEMENT

Mr. Cull moved for adoption and Mr. Ethridge seconded the motion This motion authorizes the CEO/General Manager/Secretary-Treasurer to execute an agreement between the Indiana & Ohio Railway Company (IORY), Great Parks of Hamilton County and the City of Cincinnati.

By voice vote, the SORTA Board approved the motion.

FINANCIAL REPORTS FOR NOVEMBER 2021

Ms. Resor presented the November financial reports. Total revenues were \$11.4 million, which is unfavorable to budget by \$0.7 million. Total expenses were \$10.2 million, which is favorable to budget by \$520,000 or 4.8%. Fare revenue was flat to budget. Ms. Resor then reviewed the contributing factors to these variances.

The Board accepted the report as presented.

RIDERSHIP REPORTS FOR NOVEMBER 2021

Mr. Moorman presented the November 2021 ridership reports. Total ridership for the month of November was 744,776 or 317,745 below budget.

Mr. Moorman presented the November 2021 ridership for Access. Total ridership for the month of November was 12,506 or 436 below budget.

The SORTA Board accepted the report as presented.

GREATER CINCINNATI REGION PARATRANSIT COORDINATION PRESENTATION

Liz Peak presented the Regional Paratransit Coordination study/plan to the Committee. This study/plan identified four goals: Goal 1: Improve the coordination of paratransit administrative functions; Goal 2: Integrate new technologies regionally; Goal 3: Coordinate and expand service availability throughout the region; and Goal 4: Create regional marketing opportunities. Ms. Peak stated SORTA is currently working with OKI to develop shared support services, specialists, and information; and ODOT, and NEORide to obtain funding.

The SORTA Board accepted the report as presented.

METRO ON THE MOVE REPORT

Mr. Haley provided a briefing report of Metro on the Move. The report included Metro's 2021 accomplishments; holiday festivities; Shop and Vax on Metro; recognizing Jeff Mundstock by Mass Transit as "Top 40 Under 40"; the Transit Infrastructure Signing Ceremony; and conclude his report by thanking the SORTA Board and staff for their continued hard work and effort through 2021.

The SORTA Board accepted the report as presented.

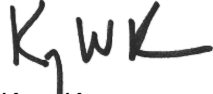
ADJOURNMENT

The meeting adjourned at 10:21 A.M.

NEXT MEETING

The next regular meeting of the SORTA Board of Trustees is scheduled for **January 18th, 2022 at 9:00 A.M.**,
the SORTA/Metro Board Room, at 525 Vine Street, Cincinnati, Ohio.

APPROVED:

Handwritten signature of Kreg Keesee in black ink.

Kreg Keesee
Chair, SORTA Board

ATTESTED:

Handwritten signature of Darryl Haley in black ink.

Darryl Haley
CEO/General Manager/Secretary-Treasurer

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY

MINUTES OF: Speical Meeting of the SORTA Board of Trustees

DATE: Friday, January 7th, 2022 10:00 A.M.

BOARD MEMBERS PRESENT: Alyson Beridon, Brendon Cull, Blake Ethridge, Kreg Keesee, Robert Harris, Roderick Hinton and Sonja Taylor

BOARD MEMBERS ABSENT: Heidi Black, Maurice Brown, Chelsea Clark, Allen Freeman, Thaddeus Hoffmeister, Gwen Robinson, Larry Thompson, and Kathleen Wyenandt

STAFF MEMBERS: Jennifer Jackson, John Ravasio, Cindy Resor, Shannel Satterfield, and Khaled Shammout

OTHERS:

CALL TO ORDER

Mr. Keesee SORTA Board Vice Chair, called the special meeting to order.

PLEDGE OF ALLEGIANCE

The Pledge of Allegiance was recited.

PUBLIC COMMENTS

There were no public comments.

EXECUTIVE SESSION

Mr. Keesee made a motion that the Board go into Executive Session as provided in O.R.C. Executive Session: "Section 121.22(G)(4) Preparing for, conducting, or reviewing negotiations or bargaining sessions with public employees...", and Mr. Cull seconded the motion. By roll call vote the Board approved the motion and went into Executive Session at 10:05 A.M. Mr. Keesee made a motion that the Board return to regular session and Mr. Cull seconded the motion. By voice vote the Board approved the motion and returned to regular session at 11:00 A.M.

PROPOSED RESOLUTION 2022-01: ACCEPTANCE OF THE OHIO FACT FINDERS REPORT AND RECOMMENDATION

Mr. Keesee moved for adoption and Mr. Harris seconded the motion. This resolution accepts the finding of the SERB-appointed Fact Finder and authorizes and directs the CEO/General Manager or other designated representative to notify SERB and the Amalgamated Transit Union Local 627 of this action. The new three-year labor contract between SORTA and the ATU, effective retroactively from November 1, 2020 through October 31, 2023.

By roll call, the SORTA Board approved the Resolution No. 2022-01.

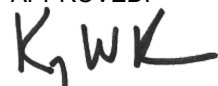
ADJOURNMENT

The meeting adjourned at 11:10 A.M.

NEXT MEETING

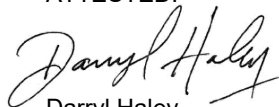
The next regular meeting of the SORTA Board of Trustees is scheduled for **Janaury 18th, 2022 at 9:00 A.M.**,
the SORTA/Metro Board Room, at 525 Vine Street, Cincinnati, Ohio.

APPROVED:



Kreg Keesee
Chair, SORTA Board

ATTESTED:



Darryl Haley
CEO/General Manager/Secretary-Treasurer

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
MOTION

ADOPTION OF 2022 BOARD AND COMMITTEE MEETING SCHEDULE

The SORTA Board approves and adopts the 2022 Board and Committee Meeting Schedule as attached.

MOVED BY: Ms. Black SECOND BY: Mr. Hinton

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson,
Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT
THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris, Mr. Hoffmeister and Mr. Thompson

PRESENT
NON-VOTING
MEMBERS: None

ABSENT NON-
VOTING
MEMBERS AT
THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

**SORTA
Schedule of Meetings
2022**

<u>Finance Committee</u>	<u>Planning & Operations Committee</u>	<u>All Other</u>	<u>SORTA Board</u>
Tuesday 9:00 a.m.	Tuesday 9:30 a.m.	Tuesday 10:00 a.m.	Tuesday 9:00 a.m./6:00 p.m.
January 11	January 11		January 18 9:00 a.m.
February 8	February 8		February 15 6:00 p.m.
March 8	March 8		March 15 9:00 a.m.
April 12	April 12		April 19 6:00 p.m.
May 10	May 10		May 17 9:00 a.m.
June 14	June 14		June 21 6:00 p.m.
July 12	July 12		July 19 9:00 a.m.
August 9	August 9		August 16 6:00 p.m.
September 13	September 13		September 20 9:00 a.m.
October 6	October 6		October 18 6:00 p.m.
November 8	November 8		November 15 9:00 a.m.
December 6	December 6		December 13 6:00 p.m.

Note: All other Committees meet as needed.

October Committee moved to Thursday, October 6th, 2021 due to APTA's Transform Conference.

December Committee and Board meetings were moved to the 1st and 2nd Tuesday of the month due to holiday.

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
RESOLUTION NO. 2022-02

APPROVAL OF CONTRACT FOR THIRD PARTY ADMINISTRATOR FOR WORKERS COMPENSATION

WHEREAS:

1. SORTA staff has utilized the services of Workers' Compensation third-party administrator ("TPA") since January 1990 to assist in the administration of its self-insured Workers' Compensation program.
2. SORTA solicited competitive proposals for the Third Party Workers' Administration and consulting service and six (6) firms responded to SORTA's request for proposals.
3. SORTA staff recommends that a five (5) year contract for Third Party Workers' Compensation Administration and Consulting Services be awarded to Hunter Consulting Services Company as the responsible proposer whose proposal is the most advantageous to SORTA, price and other factors considered at a not to exceed cost of \$319,500.

THEREFORE, BE IT RESOLVED:

4. The Board hereby finds the proposal of Hunter Consulting Services to be the proposal from a responsible proposer which is most advantageous to SORTA, price and other factors considered, and awards to it a contract for the furnishing thereof.
5. Either the CEO/General Manager/Secretary-Treasurer or the Interim CFO shall execute the contract on behalf of SORTA.

MOVED BY: Ms. Black SECOND BY: Mr. Hinton

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson, Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT
THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris, Mr. Hoffmeister and Mr. Thompson

PRESENT
NON-VOTING
MEMBERS: None

ABSENT NON-
VOTING
MEMBERS AT
THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

ACTION ITEM- APPROVAL OF THIRD PARTY ADMINISTRATOR CONTRACT FOR WORKERS COMPENSATION

STRATEGIC PLAN GOAL / OBJECTIVE

- Operational Excellence

RECOMMENDATION

Approval of a resolution authorizing the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute a five (5) year contract with Hunter Consulting Company on behalf of SORTA at a cost not to exceed \$319,500.

FINANCIAL CONSIDERATIONS

- This is a five (5) year agreement beginning March 1, 2022 and ending February 28, 2027 with a total expenditure of \$319,500. It replaces a previous five (5) year agreement that totaled \$265,500, a total increase of 20% and includes escalations of 3.0% per year during the agreement.
- The annual expenditure of this agreement is budgeted for 2022 at \$60,240.
- This expenditure will be funded with operating funds.

BUSINESS PURPOSE

- To provide SORTA with Workers' Compensation administration, consulting and representation services for all self-insured and state fund claims, with the purpose of fulfilling SORTA'S Workers' Compensation obligations at the least possible cost.
- To assist SORTA in managing claims in accordance with the workers' compensation laws of the State of Ohio.

PROCUREMENT CONSIDERATIONS

- This is a firm, fixed price contract.
- Hunter Consulting Company submitted the proposal most advantageous to SORTA, price and other factors considered.
- The contract procurement summary is attached.

D/M/WBE CONSIDERATIONS

- This solicitation was sent to all vendors within the Public Purchase with relevant NAICS codes. A total of 6 bids were received, none of which were DBE.
- SORTA has not established a DBE participation goal for this contract.

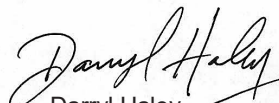
LEGAL CONSIDERATIONS

- Section 306.43 of the Ohio Revised Code authorizes SORTA to contract for the provision of goods and services.

SUBMITTED BY:



Cindy Resor
Interim Chief Financial Officer



Darryl Haley
CEO/General Manager



Procurement Summary Report
Request for Proposal
Contract No. 36-2021
Third Party Administrator (TPA)

Contract Information

- A. Description:** Third Party Administrator (TPA) for SORTA's Workers' Compensation Claims
- B. Contractor:** Hunter Consulting Company
- C. Contract Amount:** \$319,500
- D. Determination of Price Reasonableness:** The price submitted by Hunter Consulting Company is considered fair and reasonable based on a competitive pricing environment.
- E. Contract Type:** Not To Exceed Firm Fixed Price
- F. Performance Period:** Contract to begin on date of full execution and end five (5) years thereafter.
- G. Options Available:** None
- H. Funding Source:** Local funding
- I. Participation by D/M/S/WBE Firms:** None

Solicitation Information

- J. Solicitation Type:** RFP
- K. Number of Solicitation Packages Sent:** Solicitation was sent to all vendors within Public Purchase with relevant NAICS codes.
- L. Number of D/M/S/WBE Firms Solicited:** None
- M. Date and Time for Bid Receipt:** December 3, 2021 at 2:00 p.m.
- N. Number of Bids Received:** 6
- O. Number of Bids Received from D/M/S/WBE Firms:** None
- P. Discussion of Nonresponsive Bids:** None
- Q. Protests Received:** None

Recommendation for Award

Hunter Consulting Company is determined to have submitted a bid acceptable to SORTA, cost and all other factors considered; it has the capacity to perform this contract in all respects and is recommended for award.

Concur: *Mary White* Date 1/3/2022

Project Manager

Prepared by: Kelly Pierson Date 1/3/2022
Buyer/Purchasing Agent

Reviewed and Approved: Jason Roe Date 1/3/2022
Senior Manager of
Procurement

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
MOTION

ADOPTION OF 2022 BOARD AND COMMITTEE MEETING SCHEDULE

The SORTA Board approves and adopts the 2022 Board and Committee Meeting Schedule as attached.

MOVED BY: Ms. Black SECOND BY: Mr. Hinton

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson,
Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT
THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris, Mr. Hoffmeister and Mr. Thompson

PRESENT
NON-VOTING
MEMBERS: None

ABSENT NON-
VOTING
MEMBERS AT
THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

ACTION ITEM- APPROVAL OF AGENCY SAFETY PLAN

STRATEGIC PLAN GOAL / OBJECTIVE

- Operational Excellence

RECOMMENDATION

Approval of Agency Safety Plan, procedure number SYS-PGM-0022-R2, authorizing the CEO/General Manager, and the Interim Vice President of Safety and Security to implement such plan.

FINANCIAL CONSIDERATIONS

- There are no financial considerations.

BUSINESS PURPOSE

- To comply with Subpart B of 49 CFR Part 673, Section (a) (1), which requires The Public Transportation Agency Safety Plan and subsequent updates, be signed by the Accountable Executive and approved by the agency's Board of Directors, or an Equivalent Authority.
- Both the signature by the Accountable Executive and approval by the Board of Trustees constitute certification of compliance of the Agency Safety Plan to 673.13

PROCUREMENT CONSIDERATIONS

- There are no procurement considerations.

D/M/WBE CONSIDERATIONS

- There are no D/M/WBE considerations.

LEGAL CONSIDERATIONS

- Subpart B of 49 CFR Part 673

SUBMITTED BY:

Mike Weil, TSSP, PTSCTP
Interim CSO, VP Safety and Security

Darryl Haley
CEO/General Manager



Safety Management Policy Statement

The overarching safety goal of the Southwest Ohio Transit Authority (SORTA) is to provide the safest possible environment for our employees, passengers and the public we interact with. To accomplish this we will dedicate the needed resources to ensure the safest possible delivery of service to our community. All levels of management and all employees (and contractors) are accountable for the delivery of the highest level of safety performance, starting with the Board of Trustees, Executives, Directors, Managers, Supervisors, employees, and contractors.

SORTA is committed to supporting the reporting of identified safety hazards and risks in day-to-day duties by employees to senior management without fear of reprisal, so that the hazards and risks can be mitigated or eliminated. To that end, SORTA encourages all employees to participate in the Safety Reporting System (SRS) without fear of retaliation. With the exception of illegal activities or intentional disregard for regulations, policies, or procedures, no employee will ever be disciplined for reporting safety hazards or events.

This Safety Management Policy Statement is communicated to the Board of Trustee via the annual review and approval process. It is also communicated through the use of communication boards, located at each of the facilities, as well as on our website at www.go-metro.com. An employee may also request a printed copy through the Metro Safety Department.

Signature by the Accountable Executive

Name/Title _____ Date ____/____/____

Signature by the Chief Safety Officer

Name/Title _____ Date ____/____/____

January 2022

ACTION ITEM- APPROVAL OF CONTRACT FOR OPERATIONS PERSONNEL UNIFORMS

STRATEGIC PLAN GOAL / OBJECTIVE

- Operational Excellence

RECOMMENDATION

Approval of a resolution authorizing the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute a three (3) year agreement with Galls, LLC on behalf of SORTA at a cost not to exceed \$1,469,251.19.

FINANCIAL CONSIDERATIONS

- This agreement is a three (3) year agreement beginning February 1, 2022 with a total expenditure of \$1,469,251.19.
- This contract replaces a prior three year contract which totaled \$607,299. The increase in the amount for the proposed contract is due to the projected increase in number of employees for growth covered under this contract. The first year of this contract each operator will receive a complete set of uniforms at an estimated average cost of (\$828) per set in addition to their first year annual contractual uniform allotment of (\$390).
- The projected first year cost of this agreement \$755,867.
- This expenditure will be funded with operating funds.

BUSINESS PURPOSE

- To provide supervisor and operator personnel with uniforms in accordance with Section 23 of the Memorandum of Agreement between Southwest Ohio Regional Transit Authority and Amalgamated Transit Union Local 627.

PROCUREMENT CONSIDERATIONS

- This is a firm, fixed unit price contract.
- Galls, LLC submitted the proposal most advantageous to SORTA, price and other factors considered.
- The contract procurement summary is attached.

D/M/WBE CONSIDERATIONS

- This solicitation was sent to 33 potential vendors
- One (1) proposal was received from Disadvantaged Business Enterprises (DBE)
- SORTA has not established a DBE participation goal for this contract.

LEGAL CONSIDERATIONS

- Section 306.43 of the Ohio Revised Code authorizes SORTA to contract for the provision of goods and services.

SUBMITTED BY:

Christopher Cole

Christopher Cole
Vice President of Transit Operations

Darryl Haley

Darryl Haley
CEO/General Manager



**Procurement Summary Report
Request for Proposal
Uniforms for Transportation Department
Contract No. 60-2021**

Contract Information:

- A. Description:** Uniforms for Transportation Department.
- B. Contractor:** Galls LLC
- C. Contract Amount:** \$1,469,251.19
- D. Determination of Price Reasonableness:** Prices are determined to be fair and reasonable based on competition.
- E. Contract Type:** Firm-Fixed Unit Price
- F. Performance Period:** Contract Execution Date and ending three years from contract execution.
- G. Options Available:** None
- H. Funding Source:** Operating
- I. Participation by D/M/S/WBE Firms:** None

Solicitation Information

- J. Solicitation Type:** RFP
- K. Number of Solicitation Packages Sent:** Solicitation was sent to vendors within Public Purchase with relevant NAICS codes.
- L. Number of D/M/S/WBE Firms Solicited:** 33
- M. Date and Time for Proposals Receipt:** December 3, 2021 2:00 p.m.
- N. Number of Proposals Received:** 3
- O. Number of Proposals Received from D/M/S/WBE Firms:** 1
- P. Proposals Evaluated:** 3
- Q. Evaluation Method:** In accordance with standard procedures, responsive proposals were reviewed by a panel of SORTA employees.
- R. Discussion of Nonresponsive Proposals:** None
- S. Protests Received:** None

Recommendation for Award

Galls LLC is determined to have submitted the proposal most advantageous to SORTA, cost and all other factors considered; and have the capacity to perform this contract in all respects and is recommended for award.

Concur:  12-28-2021
Project Manager Date

Prepared by:  12/30/2021
Buyer/Purchasing Agent Date

Reviewed and Approved:  1/3/2022
Senior Manager of Procurement Date

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
RESOLUTION NO. 2022-04

APPROVAL OF A MEMORANDUM OF UNDERSTANDING (MOU) WITH THE VILLAGE OF SILVERTON

WHEREAS:

1. The Village of Silverton ("Silverton") is an Ohio municipality located in Hamilton County located at 6943 Montgomery Road; and
2. Southwest Ohio Regional Transportation Authority ("SORTA") is the public transport agency serving Cincinnati and its Ohio suburbs which owns property in Silverton located at 7000 Montgomery Road; and
3. the Local Initiative Support Corporation ("LISC") published a comprehensive report in May of 2020 called *Housing Our Future* which documents a need for 40,000 additional affordable housing units in Hamilton County; and
4. the Cincinnati USA Regional Chamber of Commerce ("Chamber") published a report in 2021 called *Embracing Growth: Principles for Regional Housing* that demonstrated that the Cincinnati region's future is inextricably linked to expanding our housing market; and
5. the United Nations Intergovernmental Panel on Climate Change Cincinnati USA Regional Chamber of Commerce ("IPCC") published its Sixth Assessment Report in 2021 that provided a clarion call for fundamental rethinking of our approach to carbon production which necessitates dramatic changes in the way we live, travel, work, and plan our communities which compels civic leaders to embrace public transit, densification, net-zero construction, and sustainability combined with racial equity; and
6. the Village of Silverton is looking for solutions within its corporate limits to make its contribution to solving our region's affordable housing challenges, reversing first suburban decline, spurring sustainable economic growth, and modeling smart planning which houses residents along public transportation routes; and
7. the Southwest Ohio Regional Transit Authority operates its METRO Access facility at 7000 Montgomery Road, providing essentially services to riders and patrons who have special needs, and is invested in the upgrade to this facility in 2021; and
8. Silverton and SORTA wish to explore using the western portion of 7000 Montgomery Road for transit-oriented housing provided that sufficient space remains to enable SORTA to continue to operate its METRO Access facility in its current location.

THEREFORE, BE IT RESOLVED:

9. This Memorandum of Understanding ("MOU") is entered into by and between Silverton and SORTA for the proposed development of transit-oriented housing on the western portion of SORTA's approximately 1.673-acre property at 7000 Montgomery Road ("Project") in Silverton, Ohio
10. Either the CEO/General Manager/Secretary-Treasurer or the Interim CFO shall execute the contract on behalf of SORTA.

MOVED BY: Mr. Hinton SECOND BY: Ms. Black

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson, Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris Mr. Hoffmeister and Mr. Thompson

PRESENT NON-VOTING MEMBERS: None

ABSENT NON-VOTING MEMBERS AT THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

**ACTION ITEM- APPROVAL OF A MEMORANDUM OF UNDERSTANDING (MOU) WITH THE
VILLAGE OF SILVERTON**

STRATEGIC PLAN GOAL/OBJECTIVE

- Strategic Partnering

RECOMMENDATION

Staff recommends the SORTA Board approve the memorandum of understanding (MOU) to allow SORTA staff to work with the Village of Silverton on exploring the potential for a transit oriented development (TOD).

FINANCIAL CONSIDERATIONS

- N/A

BUSINESS PURPOSE

- The development of a TOD with a transit facility (i.e. bus stop) would help in promoting transit and increasing ridership.
- The TOD will occupy a part of the property owned by SORTA (located at 7000 Montgomery Rd).
- This MOU is strictly to explore options for the TOD and not to sell nor transfer any of the property.

PROCUREMENT CONSIDERATIONS

- None.

D/M/WBE CONSIDERATIONS

- N/A

LEGAL CONSIDERATIONS

- N/A

SUBMITTED BY:



Khaled Shammout
Chief Strategic Planning, Development & Innovation Officer

MEMORANDUM OF UNDERSTANDING

WHEREAS, THE VILLAGE OF SILVERTON (“Silverton”) is an Ohio municipality located in Hamilton County located at 6943 Montgomery Road; and

WHEREAS, the SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY (“SORTA”) is the public transport agency serving Cincinnati and its Ohio suburbs which owns property in Silverton located at 7000 Montgomery Road; and

WHEREAS, the Local Initiative Support Corporation (“LISC”) published a comprehensive report in May of 2020 called *Housing Our Future* which documents a need for 40,000 additional affordable housing units in Hamilton County; and

WHEREAS, the International City/County Management Association (“ICMA”) published a study report in January of 2021 called *Revitalizing First Suburbs: A Manager’s Manual* which examined the suburbanization of poverty in Hamilton County’s suburbs, detailed population losses in many struggling first suburbs, and showed that housing is one of the primary drivers of community tax base and wealth in Hamilton County; and

WHEREAS, the Cincinnati USA Regional Chamber of Commerce (“Chamber”) published a report in 2021 called *Embracing Growth: Principles for Regional Housing* that demonstrated that the Cincinnati’ region’s future is inextricably linked to expanding our housing market; and

WHEREAS, the United Nations Intergovernmental Panel on Climate Change Cincinnati USA Regional Chamber of Commerce (“IPCC”) published its Sixth Assessment Report in 2021 that provided a clarion call for fundamental rethinking of our approach to carbon production which necessitates dramatic changes in the way we live, travel, work, and plan our communities which compels civic leaders to embrace public transit, densification, net-zero construction, and sustainability combined with racial equity; and

WHEREAS, the Village of Silverton is looking for solutions within its corporate limits to make its contribution to solving our region’s affordable housing challenges, reversing first suburban decline, spurring sustainable economic growth, and modeling smart planning which houses residents along public transportation routes; and

WHEREAS, the Southwest Ohio Regional Transit Authority operates its METRO Access facility at 7000 Montgomery Road, providing essentially services to riders and patrons who have special needs, and is invested in the upgrade to this facility in 2021; and

WHEREAS, Silverton and SORTA wish to explore using the western portion of 7000 Montgomery Road for transit-oriented housing provided that sufficient space remains to enable SORTA to continue to operate its METRO Access facility in its current location.

NOW THEREFORE, this Memorandum of Understanding (“MOU”) is entered into by and between Silverton and SORTA for the proposed development of transit-oriented housing on the western portion of SORTA’s approximately 1.673-acre property at

7000 Montgomery Road (“Project”) in Silverton, Ohio under the following terms and conditions.

1. The Project is depicted on Exhibit A attached hereto and made a part hereof which consists of three preliminary concept plans (“Concept Plans”) showing options for utilizing approximately 1.0 acre of land for transit-oriented housing. These are concepts only and additional analysis is needed by both parties to determine the final plans and areas which will be utilized for transit-oriented housing and which will be fully retained and controlled by SORTA for its METRO Access facility.
2. The Concept Plans show the potential to create approximately 48,000 square feet of built space which could generate as many as 50 transit-oriented housing units with limited on-site parking in order to encourage residents to utilize public transportation.
3. Silverton and SORTA affirm their mutual desire to work in good faith to deliver the Project to preserve the METRO Access operations at 7000 Montgomery Road, provide workforce or affordable housing at 7000 Montgomery Road in 2023 to enable its adaptive reuse consistent with Silverton’s Zoning Code. Silverton will or will cause the Developer to construct and maintain, at Silverton’s or the Developer’s expense, a bus stop and related amenities which meet SORTA’s requirements located at the Project.
4. SORTA is the owner of 7000 Montgomery Road and has site control. Silverton is the municipality with zoning authority over 7000 Montgomery Road consistent with applicable laws and regulations.
 - a. SORTA and Silverton shall work cooperatively to plan transit-oriented housing to be built by a yet-to-be-selected third party private developer under terms agreeable to Silverton and SORTA.
 - b. To determine how to build transit-oriented housing, SORTA and Silverton shall negotiate in good faith to develop a Master Development Agreement (“MDA”) which the parties anticipate completing and being in executable form by July 1, 2022. In the event the MDA is not executed, this MOU shall lapse and have no further effect.
5. Recognizing that time is of the essence, the parties desire to set forth their preliminary understanding of the respective work to be undertaken by the parties during the period of preparation and negotiation of a definitive MDA between them.
6. Silverton shall undertake the following actions as detailed below:
 - a. The Village Council of Silverton shall consider a Resolution authorizing the Village Manager to sign this MOU by January 20, 2022.
 - b. The Village Manager shall serve as the project manager and point of contact for Silverton on this project.

- c. The Village Manager shall draft a Request for Qualifications (“RFQ”) to the development community by January 28, 2022. The Village Manager shall share the draft RFQ with the SORTA PM (as hereinafter defined) on or before January 28, 2022.
 - d. The Village Manager shall incorporate any feedback from the SORTA PM into a final RFQ by February 11, 2022.
 - e. The Village Manager shall coordinate RFQ deadlines and milestone dates with the SORTA PM for the selection of a preferred developer (“Developer”) by March 31, 2022.
 - f. The Village Manager shall draft an MDA for consideration by SORTA by March 31, 2022. The MDA must be acceptable to SORTA as a condition to SORTA’s participation in the Project and permitting the use of 7000 Montgomery Road for the Project.
 - g. Silverton, SORTA, and the Developer shall endeavor to negotiate an MDA on or before July 1, 2022. The selected Developer shall become designated as the Developer of Record.
 - h. Upon execution of an MDA by Silverton, SORTA, and a Developer, the Village shall oversee the process of rezoning 7000 Montgomery Road in response to plans and planning documents to be submitted by the Developer of Record. SORTA reserves the right to withdraw from the Project if SORTA believes any such rezoning could adversely affect its operations or mission.
 - i. The Village shall be responsible for all of its own legal costs, engineering costs, and other associated expenses to fulfill the Village’s obligations under the MOU. Nothing herein shall prevent the Village from seeking cost recovery from the Developer of Record for the review of plans and engineering documents, however.
7. SORTA shall use reasonable efforts to undertake the following actions as detailed below:
- a. The SORTA Board of Directors shall consider a Resolution authorizing the Chief Executive Officer and General Manager to sign this MOU by January 18, 2022.
 - b. SORTA’s Chief Executive Officer and General Manager shall appoint a senior member of SORTA’s team to serve as the project manager (“SORTA PM”) and point of contact for SORTA on this project on or before January 18, 2022.

- c. The SORTA PM shall review a draft RFQ and share any comments, concerns, or suggestions with the Village Manager on or before February 4, 2022.
 - d. The SORTA PM shall coordinate with the Village Manager for the selection of a Developer by March 31, 2022. Developer shall become designated as the Developer of Record.
 - e. The SORTA PM shall work cooperatively with the Village Manager on the development of a draft MDA by March 31, 2022.
 - f. SORTA shall be responsible for all of its own legal costs, and engineering costs associated with any engineering desired by SORTA in connection with this MOU. Nothing herein shall prevent SORTA from seeking cost recovery from the Developer of Record for the review of plans and engineering documents, however.
8. SILVERTON and SORTA each agree to negotiate in good faith toward reaching agreement on and executing an MDA. Silverton or SORTA can terminate this MOU upon sending written notice to the non-terminating party.
 9. SILVERTON and SORTA agree to exclusively negotiate with Developer selected through the RFQ process. In the event that Silverton and SORTA cannot agree on a Developer, this MOU shall end.
 10. SORTA and Silverton agree and recognize that a yet-to-be-determined Developer will conduct/commence certain due diligence activities upon selection as the Developer of Record, including, but not limited to, the following:
 - a. Solicit input from Silverton and SORTA regarding the site design and development program.
 - b. Refine site design concepts.
 - c. Develop detailed proformas for the Project.
 - d. Conduct further analysis regarding the demand, pricing and unit mix for the residential component.
 - e. Conduct preliminary site engineering, which may include a traffic impact study.
 - f. Develop site development cost estimates.
 - g. Analyze the feasibility of acquiring and incorporating other parcels into the Project, and if possible, negotiate with adjacent property owners regarding acquisition of additional parcels as necessary.
 - h. Analyze tax increment financing (“TIF”), Community Reinvestment Area (“CRA”) tax abatements, Low-income Tax Credits (“LIHTC”) and other public finance options.
 - i. Develop a preliminary project schedule.
 - j. Develop preliminary marketing plans for the office & retail components.
 - k. Other due diligence activities as determined necessary by Developer.

11. Developer will be solely responsible, at its expense, for all of the above due diligence activities. In the event the parties cannot agree to a mutually acceptable MDA, Developer will provide the due diligence materials to Silverton and SORTA upon request.
12. SORTA shall be compensated for the transfer or use of the portion of its property located at 7000 Montgomery Road for the Project, on terms and conditions acceptable to SORTA.
13. Subject to applicable law and regulations as determined by the releasing party, prior to signing the MDA, the parties agree that no public statements or press releases related to the Project will be made or released in the absence of the consent of Silverton and SORTA to any such announcement or release.
14. Except for the exclusivity provision, this MOU shall not be binding upon either party hereto, and is merely intended to reflect the respective parties mutual interests in entering into definitive written agreements with respect to the Project, which agreements will include the general terms and conditions described above, as the same may be amplified, supplemented and modified in the course of negotiations between the parties. Neither party shall have any right to rely on this letter in making any expenditure or other commitments with respect to the above. The general terms and conditions set forth herein form the basis for the development of a mutually satisfactory MDA and such other documents as may be necessary or desirable to effectuate the transaction contemplated hereby. The execution of an MDA and any related agreements is conditioned upon the successful negotiation of various open points not yet discussed by the parties or outlined herein. Silverton acknowledges that SORTA will need a number of regulatory and other governmental approvals prior to making any binding commitments with respect to the Project.

Remainder of Page Left Blank, Signature Page to Follow

AGREED AND ACCEPTED:

THE VILLAGE OF SILVERTON

By: _____

Its: _____

Date: January _____, 2022

AGREED AND ACCEPTED:

SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY

By: _____

Its: _____

Date: January _____, 2022

Exhibit A

Project / Concept Plan

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
RESOLUTION NO. 2022-05

APPROVAL TO PURCHASE ELECTRIC VEHICLES FOR ACCESS

WHEREAS:

1. The use of future zero emissions vehicles aligns with SORTA's strategic and Reinventing Metro plan for the fixed routes and paratransit fleets.
2. A request for proposal (RFP) based on a scope of work developed by staff was sent to vendors within Public Purchase with relevant NAICS codes. A total of four (4) proposals were received.
3. SORTA staff recommends a contract with Transportation Equipment Sales Corporation (Tesco) for the purchase of three (3) electric vehicles for Access, at a total cost not to exceed \$633,508 (\$630,658 for vehicles and a \$2,850 delivery charge).
4. This expenditure will be funded with 20% of operating and 80% OTP2 funds.

THEREFORE, BE IT RESOLVED:

5. The Board hereby finds the proposal of Transportation Equipment Sales Corporation (Tesco) to be the proposal most advantageous to SORTA, price and other factors considered, and awards to it a contract to purchase electric vehicles at a total cost not to exceed \$633,508.
6. The Board authorizes the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute a contract with Transportation Equipment Sales Corporation (Tesco) on behalf of SORTA.

MOVED BY: Mr. Hinton SECOND BY: Ms. Black

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson, Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT
THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris Mr. Hoffmeister and Mr. Thompson

PRESENT
NON-VOTING
MEMBERS: None

ABSENT NON-
VOTING
MEMBERS AT
THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

ACTION ITEM- APPROVAL OF THIRD PARTY ADMINISTRATOR CONTRACT FOR WORKERS COMPENSATION

STRATEGIC PLAN GOAL / OBJECTIVE

- Operational Excellence

RECOMMENDATION

Approval of a resolution authorizing the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute a five (5) year contract with Hunter Consulting Company on behalf of SORTA at a cost not to exceed \$319,500.

FINANCIAL CONSIDERATIONS

- This is a five (5) year agreement beginning March 1, 2022 and ending February 28, 2027 with a total expenditure of \$319,500. It replaces a previous five (5) year agreement that totaled \$265,500, a total increase of 20% and includes escalations of 3.0% per year during the agreement.
- The annual expenditure of this agreement is budgeted for 2022 at \$60,240.
- This expenditure will be funded with operating funds.

BUSINESS PURPOSE

- To provide SORTA with Workers' Compensation administration, consulting and representation services for all self-insured and state fund claims, with the purpose of fulfilling SORTA'S Workers' Compensation obligations at the least possible cost.
- To assist SORTA in managing claims in accordance with the workers' compensation laws of the State of Ohio.

PROCUREMENT CONSIDERATIONS

- This is a firm, fixed price contract.
- Hunter Consulting Company submitted the proposal most advantageous to SORTA, price and other factors considered.
- The contract procurement summary is attached.

D/M/WBE CONSIDERATIONS

- This solicitation was sent to all vendors within the Public Purchase with relevant NAICS codes. A total of 6 bids were received, none of which were DBE.
- SORTA has not established a DBE participation goal for this contract.

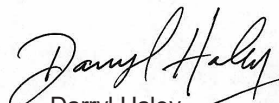
LEGAL CONSIDERATIONS

- Section 306.43 of the Ohio Revised Code authorizes SORTA to contract for the provision of goods and services.

SUBMITTED BY:



Cindy Resor
Interim Chief Financial Officer



Darryl Haley
CEO/General Manager

Contract Information

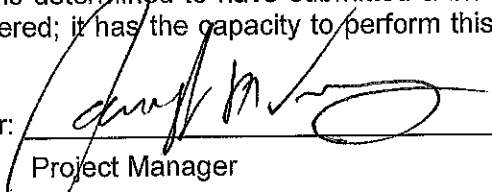
- A. Description:** Procurement of three (3) electric paratransit vehicles
- B. Contractor:** Transportation Equipment Sales Corporation (Tesco)
- C. Contract Amount:** \$630,658 + delivery charge of \$2,850 = \$633,508
- D. Determination of Price Reasonableness:** The price submitted by Tesco is considered fair and reasonable based on competitive pricing environment and comparison to the Independent Cost Estimate (ICE).
- E. Contract Type:** Not To Exceed Firm Fixed Price
- F. Performance Period:** Contract to begin on date of full execution and delivery of vehicles is expected to take place no later than two years after receipt of the fully executed contract.
- G. Options Available:** None
- H. Funding Source:** OTP2 Funds; 80/20 Split
- I. Participation by D/M/S/WBE Firms:** No

Solicitation Information

- J. Solicitation Type:** RFP
- K. Number of Solicitation Packages Sent:** Solicitation was sent to all vendors within Public Purchase with relevant NAICS codes.
- L. Number of D/M/S/WBE Firms Solicited:** None. There are no available small and/or disadvantaged firms that manufacture these vehicles. Additionally, transit vehicle manufacturers establish and submit their own DBE goal methodologies to the Federal Transit Administration for approval regarding utilization of small businesses during the manufacturing process.
- M. Date and Time for Bid Receipt:** November 22, 2021 at 2:00 p.m.
- N. Number of Bids Received:** 4
- O. Number of Bids Received from D/M/S/WBE Firms:** None
- P. Discussion of Nonresponsive Bids:** None
- Q. Protests Received:** None

Recommendation for Award

Tesco is determined to have submitted a bid acceptable to SORTA, cost and all other factors considered; it has the capacity to perform this contract in all respects and is recommended for award.

Concur:  Date 1/3/2022
Project Manager

Prepared by: Kelly Pierson Date 1/3/2022
Buyer/Purchasing Agent

Reviewed and Approved: Jason Roe Date 1/3/2022
Senior Manager of Procurement

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
RESOLUTION NO. 2022-06

APPROVAL TO PURCHASE AN ALTERNATOR TEST BENCH

WHEREAS:

1. SORTA's current alternator test bench is over thirty years old and obsolete, in order to improve fleet reliability a new alternator test bench is needed.
2. An invitation to bid (IBF) based on a scope of work developed by staff was released to vendors within Public Purchase with relevant NAICS codes. One (1) D/M/S/WBE firms were solicited and zero (0) bids were received.
3. A total of two (2) bids were received. Staff reviewed the bids and recommends the Board accept the bid from Kirk's Automotive, Inc. for an alternator test bench, at a total cost not to exceed \$144,003, as the lowest responsive bid from a responsible bidder.
4. This expenditure will be funded with operating funds.

THEREFORE, BE IT RESOLVED:

5. The Board hereby finds the bid of Kirk's Automotive, Inc. as recommended by the SORTA staff to be the lowest responsive bidder from a responsible bidder and awards to it a contract for an alternator test bench at a total cost not to exceed \$144,003.
6. The Board authorizes the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute such contract with Kirk's Automotive, Inc. on behalf of SORTA.

MOVED BY: Mr. Hinton SECOND BY: Ms. Black

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson, Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT THE TIME: Mr. Brown, Mr. Ethridge, Mr. Harris Mr. Hoffmeister and Mr. Thompson

PRESENT NON-VOTING MEMBERS: None

ABSENT NON-VOTING MEMBERS AT THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

ACTION ITEM – APPROVAL TO PURCHASE AN ALTERNATOR TEST BENCH

STRATEGIC PLAN GOAL / OBJECTIVE

- Operational Excellence

RECOMMENDATION

Approval of a resolution authorizing the CEO/General Manager/Secretary-Treasurer or the Interim CFO to execute a contract with Kirk's Automotive, Inc. on behalf of SORTA at a cost not to exceed \$144,003.

FINANCIAL CONSIDERATIONS

- Total expenditure not to exceed \$144,003.
- This expenditure will be funded with operating funds

BUSINESS PURPOSE

- This contract is for replacement of SORTA's current alternator test bench that is over 30 years old and currently obsolete. Maintenance uses the test bench to verify failures on core alternators, and test rebuilt alternators before being installed on a bus which improves fleet reliability.

PROCUREMENT CONSIDERATIONS

- This is a Firm-Fixed Unit Price type of contract
- (2) bids were received. Kirk's Automotive, Inc. was the proposal most advantageous to SORTA
- The contract procurement summary is attached.

D/M/WBE CONSIDERATIONS

- This solicitation was sent to vendors within Public Purchase with relevant NAICS codes. (36) D/M/S/WBE firms were solicited; Kirk's Automotive Inc. is not a registered D/M/S/WBE firm.

LEGAL CONSIDERATIONS

- Section 306.43 of the Ohio Revised Code authorizes SORTA to contract for the provision of goods and services.

SUBMITTED BY:



Jeff Mundstock
Director of Fleet & Facilities



Darryl Haley
CEO/General Manager

Contract Information:

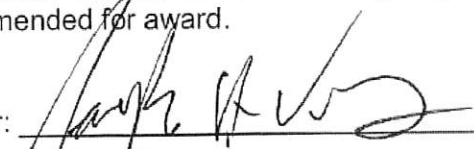
- A. Description:** Alternator Test Bench for the Main Shop Queensgate Facility
- B. Contractor:** Kirk's Automotive, Inc.
- C. Contract Amount:** \$144,003
- D. Determination of Price Reasonableness:** Prices are determined to be fair and reasonable based on competition.
- E. Contract Type:** Firm-Fixed Unit Price
- F. Performance Period:** Vendor shall provide a one (1) year warranty that includes parts, labor and travel.
- G. Options Available:** None
- H. Funding Source:** Operating
- I. Participation by D/M/S/WBE Firms:** None

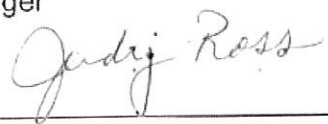
Solicitation Information

- J. Solicitation Type:** IFB
- K. Number of Solicitation Packages Sent:** Solicitation was sent to vendors within Public Purchase with relevant NAICS codes.
- L. Number of D/M/S/WBE Firms Solicited:** 36
- M. Date and Time for Bid Receipt:** November 26, 2021 2:00 p.m.
- N. Number of Bids Received:** 2
- O. Number of Bids Received from D/M/S/WBE Firms:** None
- P. Bids Evaluated:** 2
- Q. Discussion of Nonresponsive Bids:** None
- R. Protests Received:** None

Recommendation for Award

Kirk's Automotive, Inc is determined to have submitted the lowest responsive bid from a responsible bidder; it has the capacity to perform this contract in all respects and is recommended for award.

Concur:  12-2-2021
Project Manager Date

Prepared by:  12/2/2021
Buyer/Purchasing Agent Date

Reviewed and Approved:  1-3-2021
Senior Manager of Procurement Date

BOARD OF TRUSTEES
SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY
RESOLUTION NO. 2022-07

APPROVAL OF COLLECTIVE BARGAINING AGREEMENT FOR THE
METRO OPERATING DIVISION

WHEREAS:

1. The previous contract between SORTA and the Amalgamated Transit Union Local 627 ("ATU") expired October 31, 2020.
2. SORTA and ATU have collectively bargained for a successor contract.
3. SORTA and ATU have engaged in the State Employment Relations Board ("SERB") fact-finding process to address unresolved issues. The Fact Finder's hearing was held on December 13, 2021.
4. On December 31, 2021 the SERB-appointed Fact Finder issued a report that recommends provisions for a new three-year labor contract between SORTA and the ATU, effective retroactively from November 1, 2020 through October 31, 2023. The report includes all previously reached tentative agreements as well as recommendations for the resolution of all unresolved issues.
5. Neither the ATU nor the SORTA Board rejected the Fact-Finder's report within the statutory time period. Thus, under state law the report stands as a binding agreement between SORTA and ATU.

THEREFORE, BE IT RESOLVED:

6. The SORTA Board hereby approves the successor collective bargaining agreement for the Metro Operating Division for the period of November 1, 2020 through October 31, 2023 and authorizes and directs the CEO/General Manager or other designated representative to sign and execute said agreement with Amalgamated Transit Union Local 627.

MOVED BY: Mr. Hinton SECOND BY: Ms. Black

VOTE Aye: Ms. Beridon, Ms. Black, Ms. Clark, Mr. Cull, Mr. Hinton, Mr. Keesee, Ms. Robinson, Ms. Sheets, and Ms. Taylor

Nay:

ABSENT AT THE
TIME: Mr. Brown, Mr. Ethridge, Mr. Harris Mr. Hoffmeister and Mr. Thompson

PRESENT NON-
VOTING
MEMBERS: None

ABSENT NON-
VOTING
MEMBERS AT
THE TIME: Mr. Freeman and Ms. Wyenandt

APPROVED: January 18th, 2022

January 2022

**ACTION ITEM – APPROVAL OF THE SUCCESSOR COLLECTIVE BARGAINING AGREEMENT
FOR THE METRO OPERATING DIVISION**

STRATEGIC PLAN GOAL / OBJECTIVE

- Strategic Partnering

RECOMMENDATION

Approval of a resolution authorizing the CEO/General Manager to execute a successor collective bargaining agreement with ATU Local 627 for the Metro Operating Division for the period of November 1, 2020 through October 31, 2023.

FINANCIAL CONSIDERATIONS

- Total expenditure for the contract is within the spending authority requested by SORTA management to the Board's Labor Committee.
- This expenditure will be funded with operating funds.

BUSINESS PURPOSE

- This contract covers the collectively bargained terms and conditions of employment for the bargaining unit employees within the Metro Operating Division (Metro fixed route operations)
- This contract includes all tentative agreements reached by SORTA and ATU during collective bargaining as well as the report of recommendations issued by the SERB-appointed Fact-Finder.
- This contract ensures the continuity of operations of the Metro fixed route transit system.

RECOMMENDATIONS

SORTA staff recommends the Board approves the successor collective bargaining agreement for the Metro Operating Division for the period of November 1, 2020 through October 31, 2023 and authorizes and directs the CEO/General Manager or other designated representative to sign and execute said agreement with Amalgamated Transit Union Local 627.

SUBMITTED BY:



John Ravasio
Chief Operation Officer



Darryl Haley
CEO/General Manager/Secretary-Treasurer



SOUTHWEST OHIO REGIONAL TRANSIT AUTHORITY

Monthly Financial Report

Executive Summary

December 31, 2021

SORTA's financial report for the twelve months ending December 31, 2021 is attached.

Operating deficit before adjustments was \$(3.9) million for the month and \$19.3 million year to date. The deficit for the month of December in both actual and forecast was due to the retro wages and wage related benefits as a result of the final contract agreement with the bargaining unit. Capital Revenue was moved to operating revenue to offset the deficit.

Total Revenue of \$12.6 million for the month was unfavorable to forecast by \$(0.1) million or (1.1%). Year to date Total Revenue of \$138.8 million was unfavorable \$(1.1) million or (0.8%) compared to the year to date forecast.

Key Drivers - Total Revenue

- **Fares**: Fare revenue was unfavorable to forecast by \$(184,000) or (18.0%) for the month. Actual year to date fare revenue compared to forecast was unfavorable by \$(129,000) or (1.2%). The miss to the forecast was due to lower than anticipated ridership for the month and higher than anticipated ridership for the "Get out the Vax" weekend event during December. The revenue from the State of Ohio for the "Get out the Vax" weekend is reported in State Subsidies.
- **CPS Contract**: As a result of an estimated credit of \$2.1 million due to CPS for unused passes, the CPS revenue was unfavorable to forecast for the month by \$(127,000) or (38.6%). Year to date CPS revenue was unfavorable by \$(782,000) or (17.4%). We will continue to monitor the passes for the remainder of the school year and credit CPS for the total unused passes at the end of the school year.

Total Expense of \$16.5 million was favorable to forecast by \$314,000 or 1.9% for the month. Year to date Total Expense of \$119.5 million was favorable to forecast by \$1.2 million or 1.0%.

Key Drivers - Total Expense

- **Wages & Benefits**: Favorable to forecast by \$327,000 or 2.6% due to open positions, lower than forecasted operator trainees and police detail wages. Year to date was \$895,000 or 1.0% favorable to forecast.
- **Fuel & Lubricants**: Favorable to forecast \$46,000 or 9.6% primarily due to favorable miles per gallon.
- **Parts & Supplies**: Unfavorable to forecast \$(58,000) or (9.8%) due to timing. Year to date was favorable to forecast by \$61,000 0.9%

**Southwest Ohio Regional Transit Authority
2021 Profit & Loss Statement**

12 Mos Ending Dec 31, 2021 (\$ In Thousands)		Month				Year to Date											
		Actual		Forecast		Fav(Unfav)		Actual		Forecast		Fav(Unfav)		Budget		Fav(Unfav)	
Ridership																	
Fixed Route		573,779	592,125	(18,346)	(3.1%)	6,669,725	6,639,677	30,048	0.5%	9,216,335	(2,546,610)	(27.6%)					
CPS		106,945	66,000	40,945	62.0%	890,392	804,542	85,850	10.7%	1,581,930	(691,538)	(43.7%)					
Access		12,224	12,415	(191)	(1.5%)	130,274	133,548	(3,274)	(2.5%)	150,283	(20,009)	(13.3%)					
Total Ridership		692,948	670,540	22,408	3.3%	7,690,391	7,577,766	112,625	1.5%	10,948,548	(3,258,157)	(29.8%)					
Revenue																	
Metro Fares		\$ 794	\$ 979	\$ (185)	(18.9%)	\$ 9,743	\$ 9,877	\$ (134)	(1.4%)	\$ 12,995	\$ (3,252)	(25.0%)					
Access Fares		44	43	1	2.3%	500	495	5	1.0%	611	(111)	(18.2%)					
Total Fares		838	1,022	(184)	(18.0%)	10,243	10,372	(129)	(1.2%)	13,606	(3,363)	(24.7%)					
CPS Contract		202	329	(127)	(38.6%)	3,702	4,484	(782)	(17.4%)	7,201	(3,499)	(48.6%)					
Other Contract Revenue		142	147	(5)	(3.4%)	1,686	1,692	(6)	(0.4%)	1,901	(215)	(11.3%)					
Non Transportation		89	58	31	54.6%	674	601	73	12.2%	747	(73)	(9.8%)					
County Sales Tax		6,933	6,933	-	-	83,779	83,779	-	-	83,779	-	-					
Federal Subsidies		1,350	1,350	-	-	12,600	12,600	-	-	12,600	-	-					
CRRSAA		2,672	2,672	-	-	24,048	24,048	-	-	-	24,048	n/a					
State Subsidies		359	214	145	68.1%	2,023	2,268	(245)	(10.8%)	1,675	348	20.8%					
Total Revenue		12,585	12,724	(139)	(1.1%)	138,755	139,844	(1,089)	(0.8%)	121,509	17,246	14.2%					
Expenses																	
Employee Wages & Benefits		12,484	12,811	327	2.6%	89,572	90,467	895	1.0%	90,774	1,202	1.3%					
Fuel & Lubricants		434	480	46	9.6%	4,732	4,873	141	2.9%	5,103	371	7.3%					
Parts & Supplies		651	593	(58)	(9.8%)	6,956	7,017	61	0.9%	7,321	365	5.0%					
Empowerment Fund		42	40	(2)	(5.0%)	504	500	(4)	(0.8%)	504	-	-					
Other		2,862	2,863	1	0.0%	17,687	17,746	59	0.3%	17,807	120	0.7%					
Total Expenses		16,473	16,787	314	1.9%	119,451	120,603	1,152	1.0%	121,509	2,058	1.7%					
Surplus(Deficit) Before Adj		\$ (3,888)	\$ (4,063)	\$ 175		\$ 19,304	\$ 19,241	\$ 63		\$ -	\$ 19,304						
Capital Revenue		3,888	4,063			(19,304)	(19,241)			-							
After Adjustments		\$ -	\$ -			\$ -	\$ -			\$ -							
Capital																	
Capital Revenue		\$ (3,888)	\$ (4,063)			\$ 19,304	\$ 19,241			\$ -							
Capital Reserve		3,888	4,063			(19,304)	(19,241)			-							
Remaining Funds		\$ -	\$ -			\$ -	\$ -			\$ -							



Financial Results

Year to Date Ending December 31, 2021



December 2021 Statement Of Operations



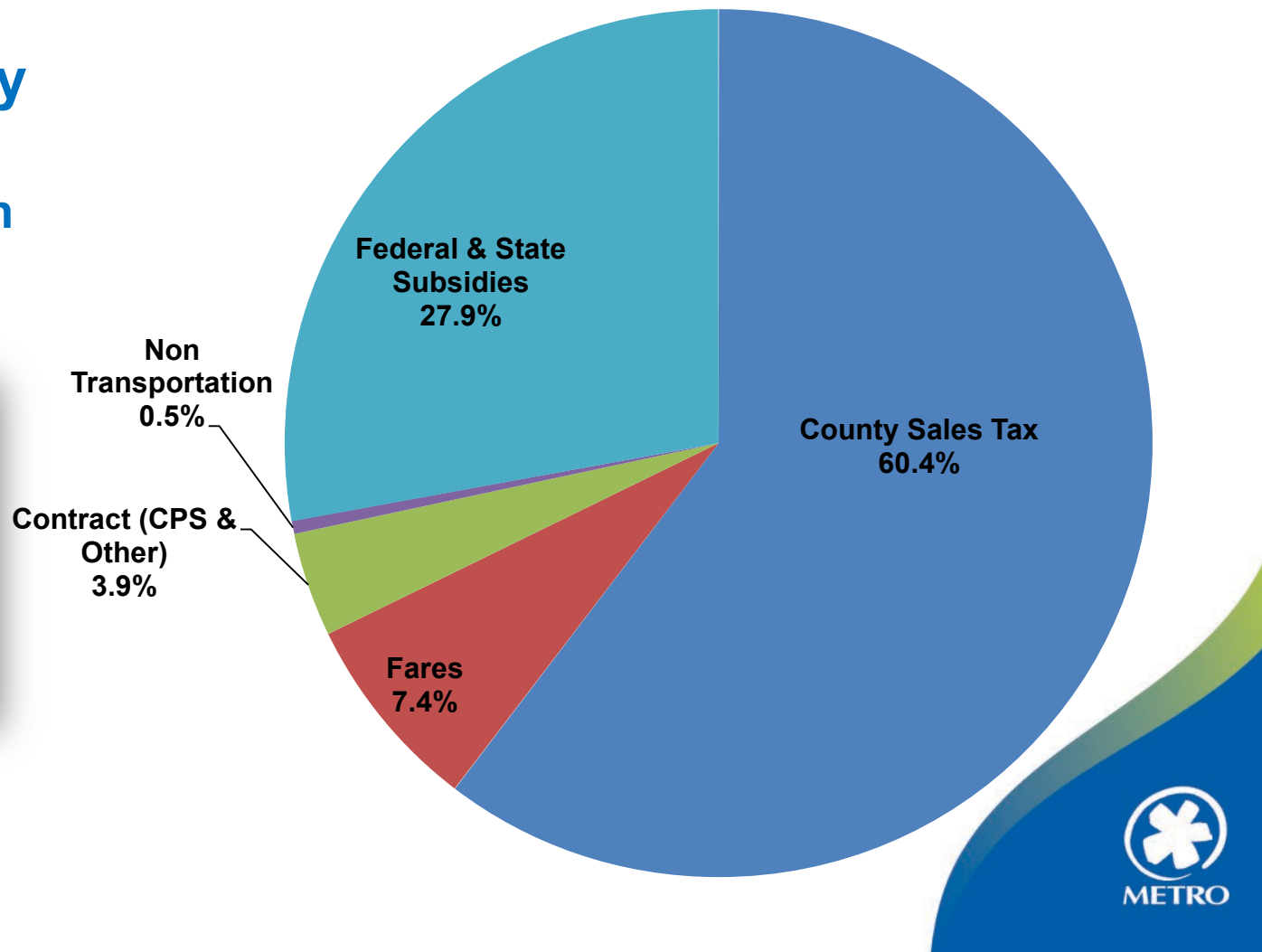
12 Mos Ending Dec 31, 2021
(\$ In Thousands)

	Month				Year to Date							
	Actual	Forecast	Fav(Unfav)		Actual	Forecast	Fav(Unfav)		Budget	Fav(Unfav)		
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Capital Revenue	3,888	\$ 4,063			(19,304)	\$ (19,241)			-			
After Adjustments	\$ -	\$ -			\$ -	\$ -			\$ -			
Capital												
Capital Revenue	\$ (3,888)	\$ (4,063)			\$ 19,304	\$ 19,241			\$ -			
Capital Reserve	3,888	4,063			(19,304)	(19,241)			-			
Remaining Funds	\$ -	\$ -			\$ -	\$ -			\$ -			

YTD Revenue by Source

% of \$138.8 million

YTD December



Capital Projection Capital Funding Actual vs Budget

	2021 Full Year Budget	Dec YTD	% To Budget
Metro Share of Sales Tax	\$ 92,537	\$ 83,779	91%
Sales Tax for Operating	83,779	64,475	77%
Remaining Sales Tax for Capital	8,758	19,304	220%
City Transit Fund Settlement	9,000	5,724	64%
Committed Bus Match for Grants Awarded	6,964	6,964	100%
Carryover from Prior Year	6,267	27,330	436%
Total Funds to Be Committed	30,989	59,322	191%

Less Annual Funds Committed by Category

	Budgeted	Actual	Budget vs Actual
Buses	6,964	6,964	-
Paratransit	176	176	-
Infrastructure	12,415	12,415	-
Total Funds Committed	19,555	19,555	-
Amount remaining(needed)	\$ 11,434	\$ 39,767	\$ 28,333



Thank You



January 2022

Happy New Year!

The turn of the clock comes with lots of exciting plans for the year ahead at Metro.

Historic Union Contract Agreement: We recently entered into the largest- ever contract wage increase with our unionized workforce in Metro's history, which is also among the largest increase in the transit industry. We're excited for the opportunity this contract provides to reward and recognize our dedicated and hardworking team members for the work they do each and every day to serve the community. This contract will also allow us to better retain current and attract new team members, which is necessary for our ability to continue rolling out new and innovative services as outlined in the Reinventing Metro Plan. We are so thankful to each of you and the team members who worked to make this agreement possible.

NTC Wins National Design Award: The beautifully constructed Northside Transit Center (NTC) was awarded three American Institute of Architects awards for '*Community Impact*' and '*Environmental Graphics*,' in addition to the merit award for architecture and planning. The NTC continues to not only provide a safe and comfortable place for customers to connect with Metro service, its state-of-the-art design, which blends well with the artsy vibe of the Northside community, is now gaining national recognition.

Transit Infrastructure Signing Ceremony: Due to the rise in COVID-19 cases, the Inaugural Transit Infrastructure Fund Ceremonial Signing event originally scheduled for this month has been postponed. Stay tuned for upcoming details regarding the rescheduling of this historic event as we award \$227 million in funds to 30 infrastructure projects across Hamilton County.

Last year, despite the challenges and uncertainties caused by the pandemic, we accomplished a lot and worked diligently to provide new and improved service to the

community. There is much yet to do in 2022 and we look forward to rolling out the next phase of Reinventing Metro, including Mobility on-Demand.

Buckle up!

A handwritten signature in black ink, reading "Darryl Haley". The signature is fluid and cursive, with the first name "Darryl" and last name "Haley" clearly distinguishable.

Darryl Haley
CEO/General Manager/ Secretary-Treasurer